

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404364	CITY OF BANNING vs THE ACME FINANCIAL GROUP LIMITED PARTNERSHIP	MOTION TO ENFORCE RECEIVERSHIP ORDER

Tentative Ruling:

The City's request for judicial notice is denied.

The City's motion to enforce the receivership order as to defendant Acme is denied.

The complaint now being at issue, the Court shall conduct a trial setting conference on August 27, 2026, at 8:30 A.M.

Analysis:

The matters of which the City asks this Court to take judicial notice are irrelevant to the Court's analysis. The request is denied on that basis.

On 9-25-25, the Court entered its Receivership Order which inter alia (1) appointed a receiver over the Nuisance Property, (2) ordered the receiver to take possession of the property from the defendants and to rehabilitate the property, (3) ordered the defendants to surrender possession of the property to the receiver, and (4) enjoined the defendants from collecting rents from the tenants or otherwise interfering with the receiver. The Acme Financial Group Limited Partnership ("Acme"), the default of which had previously been entered (Ex Q), was one of the defendants to whom the Receivership Order was directed.

On 3-5-26, Acme moved for relief from its default. On 6-3-26, the Court granted that motion, vacating the default of Acme and vacating the Receivership Order as to Acme. Less than two weeks later, the City filed a motion acknowledging the order of 6-3-26 but nevertheless seeking to enforce the terms of the Receivership Order against Acme.

The City fails to comprehend the effect of the order vacating the Receivership Order as to Acme. The Receivership Order having been vacated as to Acme, there is no longer any order to be enforced against that defendant.

The City may decide to bring a noticed motion for a preliminary injunction binding Acme. However, it is clear that the instant motion does not seek a new injunction against Acme. The notice of motion clearly describes the relief sought: to obtain "an order "[e]nforcing this Court's own September 25, 2025 Receivership Order against Defendant The Acme Financial Group Limited Partnership." (Ntc of Mtn, p. 1, ll. 7-9.) Instead of seeking a new injunction, it mistakenly attempts to enforce an injunction that no longer exists.

By repeatedly insisting that the Receivership Order must nevertheless be enforced against Acme, the City implicitly argues that Acme is bound to comply with an order that was entered against it (1) without valid service of process, and thus without personal jurisdiction, (2) without notice of the motion for the issuance of such an order, and (3) without the opportunity to be heard in opposition to that motion. The City does not cite to any authority for the proposition that a receivership order issued without due process is nevertheless enforceable.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406065	ANDERSON vs AMERICAN HONDA MOTOR COMPANY, INC.	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The plaintiff's motion for attorney's fees is granted in the reduced sum of \$21,719.

Analysis:

The fees sought for the prosecution of the instant motion are excessive. An attorney with Liu's years of experience and familiarity with the case should have been able to draft the motion, proposed order, and reply in no more than 4 hours. Instead, Liu claims to have spent 4.8 hours in drafting the motion and to expect another 6.7 hours to draft the reply. Fees are reduced by \$3,920.